

Attachment 4a - Two-Tiered Structure Rev 27Jun2022
Front Range Multiple Award Construction Contract (FRMACC)
RFP # FA251719RA016

The FRMACC will have a two-tiered structure. The two tiers are:

1. TIER 1

Tier 1 will be for projects with an estimated value of equal to or below the simplified acquisition threshold (SAT). It will be set-aside for 8(a) concerns restricted to Colorado and Wyoming Districts only. At the task order level, based on the Government's best interest, future projects under Tier 1 will either be competed amongst all Tier 1 awardees or be directly awarded to a Tier 1 awardee on a rotational basis. Each participating location in the Front Range will be assigned a Tier 1 awardee list to start the direct award rotation. The Government is reserving \$300M of the \$950M program ceiling exclusively for Tier 1 8(a) awardees.

2. TIER 2

Tier 2 will be for projects with an estimated value of above the SAT to \$10M. Tier 2 will be set-aside for small business (SB) concerns nationwide, to include the Tier 1 8(a) awardees. Once the Tier 2 minimum guarantees are fulfilled, Tier 1 awardees will be allowed to participate in Tier 2 projects. At the task order level, based on the Government's best interest, future projects under Tier 2 will be competed amongst all Tier 2 awardees (to include Tier 1 awardees). The Government is reserving the remaining \$650M of the \$950M program ceiling for Tier 2 SB awardees.

Upon receipt of a Fair Opportunity Proposal Request (FOPR) package from Civil Engineering (CE)/Directorate of Public Works (DPW), the Contracting Officer (CO) will assign the project to the appropriate tier level based on the dollar value of the Independent Government Estimate (IGE). All projects will remain in the tier level assigned by the CO, no matter if the proposal received is above or below the tier threshold (e.g., project assigned to Tier 1 and the proposal comes in at \$260K, it will remain in Tier 1 or project assigned to Tier 2 and the proposal comes in at \$245K, it will remain in Tier 2).

The FRMACC Contracting Officer will keep track of all the task order award amounts for each tier throughout the term of the contract. If Tier 1 ceiling of \$300M is reached, the Government reserves the right to dissolve the tiers in this contract by issuing a bilateral modification to both Tier 1 and Tier 2 awardees. If any awardee does not accept the bilateral modification to dissolve the tiers, the Government reserves the right to off-ramp that awardee.